

Annexure - A**FIRST INFORMATION REPORT**

(Under Section 52 of the NDPS Act, 1985 r/w section 173 of BNSS previously
154 of CrPC)

1. District.....P.S.....Year.....FIR No.....Date.....
2. Under Section (s)..... of Narcotics Drugs & Psychotropic Substances Act, 1985. And if also under other Acts:
 - (i) Act.....Sections.....
 - (ii) Act.....Sections.....

(There could be two possible scenarios in drug cases: Case based on prior information and case of chance recovery)
3. If case is based on prior information: Date..... Time.....of receipt of information.
General Diary Reference: Entry No.....Time.....
4. Whether the information was reduced to writing and put up before Senior Officer:.....Name of the Superior Officer.....
(S. 42 (2) of NDPS Act: Information must be in writing and must be submitted to the immediate official superior within 72 Hours, it is a mandatory requirement) (Specimen information note is annexed herewith as **Annexure-A**)
5. Reasons if no prior approval/authorization/warrant obtained **(S.41 of the NDPS Act)**: (Was his belief and the ground that search authorization cannot be obtained without affording opportunity for concealment of evidence or facility for escape of the offender, recorded in writing by him? (If he is proceeding to search premises without search authorization between sunset to sunrise- Proviso to **Section 42 (1) of the NDPS Act**)
6. If Case is of Chance Recovery: Date.....Time..... of detection of drugs and under what circumstances drug was detected)
(No compliance of sections 42 & 50 of the NDPS Act is required in cases of chance recovery)
7. Place of Occurrence:

- a) Direction and distance from P.S.....Beat No.....Latitude and Longitude/GPS location of the place of occurrence (Preferably)
- b) Address:.....
- c) In case, outside the limit of this Police Station, then
Name of P.S.....District.....
- d) Whether Public Place or Private Place (**Sections 41, 42, 43 of NDPS Act**):
If private place, whether search warrant/authorization obtained.
8. If any search warrant/authorization obtained: (**S. 41 NDPS Act**) (Specimen of search authorization is annexed herewith as **Annexure-B**)
9. Complainant:
- a) Name.....
- b) Father's/Husband's name.....
- c) Date/Year of Birth.....
- d) Nationality.....
- e) Passport No.....Date of issue.....Place of issue.....
- f) Occupation.....
- g) Address.....
- (**As per section 68 of the NDPS Act** no officer shall be compelled to reveal the source of information)
10. Whether compliance of **Section 50** of the NDPS Act done? Whether personal search of accused persons were carried out in the presence of Gazetted officer/Magistrate: If yes, details of the G.O./Magistrate: Name.....Address.....
- (Specimen notice u/s 50 of the NDPS Act is annexed herewith as **Annexure-c**)
11. Details of the independent recovery witnesses:
- 1) Name.....Address.....Phone No.....
- 2) Name.....Address.....Phone No.....
12. Details of the Videographer/Photographer who captured video/photos of search and seizure proceedings:
- a) Name:.....
- b) Address..... Phone No.....
- (**Hon'ble Supreme Court directions in *Shahfi Mohd's* case**)

13. Details of the seizing officer: (Whether empowered under NDPS Act or authorized by Competent officer **u/s. 41 of NDPS Act**)

Name:

Designation:

Address:

14. If any delay in forwarding persons and seized drugs to SHO/Magistrate **u/s 52 of the NDPS Act**, reasons thereof.

15. Details of the offenders/suspects/ unknown accused with full particulars:

(Attach separate sheet, if necessary)

(1).....

(2).....

(3).....

(Previous involvements-**S. 31 and factors covered u/s 32B of NDPS Act.**)

16. Date and time of the production of case property and arrested persons:

a) Sealed with the seal.....

b) Manner of Packing.....

c) No.s of packets.....

d) Any other relevant information.....

17. **FIR Contents** (Attach Separate Sheet, if any):

On 01/06/2023, at about 2030 Hrs, information was received by Sh._____, IO that a truck bearing registration number_____ coming from Berhampur Odisha is carrying huge quantity of Ganja concealed in cavity made in front of roof of Driver Cabin of truck and the truck will cross Varanasi via Akhari overbridge between 0400 Hrs to 0700 Hrs on 02/06/2023. About 05 persons would be present in the truck. The said information was reduced in writing by Shri _____, IO and was placed before his superior, Shri _____ (In compliance of section 42 of the NDPS Act). Then a team headed by Sh._____ Comprising of X members (details of all the team members) was constituted for execution of the secret information. The IO authorized u/s 42 NDPS Act, collected official seal bearing impression "XXX-5" from the seal in-charge and team collected all the necessary items required for search and seizure. The detailed team moved in departmental vehicles driven by departmental driver Shri_____ and Shri _____ at about 2:00 Hrs and reached near Akhari over bridge on NH-2 at Varanasi-Allahabad Highway at about 03:30 Hrs on 02/06/2023. Then the

team contacted few passer-byes on highway and requested them to join the raiding team as independent witness during the search-seizure proceedings of Narcotic Drug. However, no one accepted the request citing personal reasons (or above mentioned two witnesses voluntarily agreed to join the raiding team as independent witnesses) (Section 103 of BNSS, 2023 previously 100 CrPC). Then without wasting further time, the team mounted surveillance in the area. At about 0600 hrs., the truck bearing registration number _____ was noticed coming from Mohania side and the same was intercepted near Akhari overbridge in front of Indian oil petrol pump on National Highway-2 (Varanasi-Allahabad Highway). On interception, it was found that 05 persons were present in the truck.

On questioning, they disclosed their names as (1) _____ S/o _____
R/o _____ (2) _____ S/o _____ R/o _____
_____ (3) _____ S/o _____ R/o _____ (4)
_____ S/o _____ R/o _____ (5) _____ S/o _____ R/o _____.

On further questioning, they informed that they are coming from Odisha and are going to Maharajganj, UP. Then the team disclosed its identity and the secret information about the concealment of Ganja in the truck, on which they admitted that they have concealed Ganja in the cavity made above driver's cabin. Then, all the intercepted (05) five persons were briefed separately about the provisions of section 50 NDPS Act, 1985 and were told that they have legal right under section 50 NDPS Act to be searched before nearby Magistrate/Gazetted Officer, if they so desire. They were also told that one Gazetted Officer Shri _____ is also accompanying the raiding team. A notice u/s 50 NDPS Act was also served to them individually to which all the 05 intercepted persons told that they don't want to be searched before any Gazetted officer/Magistrate and their search could be conducted before Sh. _____, Gazetted Officer present here with the team. Then before search, all the given intercepted persons were offered search of all team members, to which they all denied which was reduced in writing. Then personal search of all the intercepted persons was conducted and during their search, no narcotics contraband was recovered from their personal possession. Further during search of truck bearing number _____, from the dashboard box in driver cabin (1) certificate of registration card in the name of Shri _____ (2) National permit authorization dated 27 Feb 2018 (3) Insurance paper of New Indian assurance were found. Further on the roof of the driver's cabin, two cavity boxes were found. On opening both the cavity boxes several rectangular polythene packets of different sizes were found. On opening every packet separately, dark green colour leafy substance that appeared to be Ganja was found and the same responded positive to the test of Ganja on Drug detection kit. On questioning from all the 05 intercepted persons, they also confirmed that the recovered material is Ganja. On counting total of 275

packets of different dimensions and weight were found. All the packets were given mark from 1-275 serially and weighed on weighing machine separately. [The weight of all the packets be mentioned separately in the FIR also]. The weight of the packets is recorded separately in the seizure memo and then sealed with the official seal bearing impression “XXX-5”. Then all 275 packets were taken into custody for further investigation. All the proceedings were separately recorded in the Panchnama/Seizure Memo and were concluded at about 8:00 hrs in the presence of all the intercepted persons and independent witnesses. All put their dated signatures in token of its correctness including Shri _____ Gazetted officer present on the spot. On satisfaction of the Commission of the Offence under the NDPS Act, all 5 intercepted persons were arrested. After completion of the proceedings, the accused were brought to the Police station and the seized items were forwarded to the nearest Magistrate for certification and drawing of samples.

18. Details of the Investigation Officer:

19. Date and time of despatch of FIR to court:

20. Date and time of report submitted to superior officer about seizure/arrest

(Section 57 of the NDPS Act)

21. Whether information of seizure/arrest is given to NCB within 48 Hours

(Form-F/SIMS)

22. Date and time, case property deposited in Malkhana/godown:

Signature of the SHO

Name:

Designation:

Date/Time:

FIR read over to the complainant/seizing officer admitted to be correctly recorded and a copy given to the complaint/seizing officer

ROAC

ANNEXURE-A

Date: 01/06/2023

Time: At about 2030 Hours

Secret Information

I have received secret information through my reliable source that today i.e. 02.06.2023 a drug deal is due to take place at place X, person A,B,C,D,E (description) would deliver huge quantity of Ganja to Y at about 0400 to 0700 Hours. If these persons are apprehended and their searches are carried out, it may result into recovery of huge quantity of drugs.

This is for your kind information and further necessary directions please.

(Signature)

Police Officer

To,

The Official Superior

ANNEXURE-B

Search Authorization u/s 41 (2) of the NDPS Act.

NAME OF ORGANIZATION OFFICE/UNIT

(Mention complete address/contact number)

(Authorization to search premises u/s 41(2) of The
NDPS Act 1985)

To

(Mention name and designation of the officer being
authorized to conduct search)

.....

.....

.....

Whereas from the information laid before me it transpires that an offence in respect of Narcotic Drugs / Psychotropic Substances / Controlled Substances is about to be committed in contravention of the provisions of the NDPS Act

1985 and that there is a reasonable belief that such substances and other articles, things, documents which may provide evidence of the contravention of the Act and of holding illegally acquired property which are liable to seizure/forfeiture under Chapter VA of the Act are kept and concealed in the premises/at

under control and occupation of Sh.....S/o, Now, therefore, by virtue of the power vested in under Section 41(2) of the NDPS Act, 1985, you are hereby authorized to search the aforesaid premises

by day or by night and seize such substance, articles, things, documents and inform the undersigned about the result of the search and action taken in respect of substance, articles, things, documents recovered therefrom. Valid for day. Issued on

(Signature)

Name and designation of the Gazetted officer

Office Seal

ANNEXURE-C

(Notice u/s 50 of The NDPS Act, 1985).

To

Sub: Notice under Section 50 of the NDPS Act, 1985).

Whereas there is reason to believe that Narcotic Drugs/Psychotropic Substances/Controlled Substances and/or documents, articles and things which may furnish evidence of commission of an offence under the NDPS Act, 1985 are in your possession, therefore, your personal search is to be conducted. This search will be conducted in presence of the nearest Gazetted Officer or Magistrate.

Date:

..... Signature

(Name & Designation of Officer)

Statement of(the Person about to be searched)

I have been informed and have understood the Notice of Personal Search under Section 50 of the NDPS Act. I require/do not require that my personal search may be conducted in presence of the nearest Gazetted Officer or Magistrate.

Signature and Name of the Person

Witnesses:

1

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